

Terms and Conditions

The Seven Toolkit

User License Agreement

As of: 10th July 2020

The terms and conditions of this User License Agreement govern the use of, and the subscription to, the Seven Toolkit, and apply between the TST The Seven Tool Ltd, a company incorporated under the laws of the Republic of Cyprus, based in Nicosia, Cyprus with a company registration number of HE407724, *and* any organisation that wishes to make use of the Seven Toolkit and the persons authorized to represent such organisation and to whom access to the Seven Toolkit is provided. All the terms and conditions are being subjected to the associated laws.

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Definitions

The following terms, as stated in this Terms and Conditions, shall have the meaning ascribed to them below:

Term	Explanation
Actions & KPIs	Setting of actions and related KPIs to help an organisation address its gaps for its material issues, as these pertain to ISO 26000.
Administrators	TST The Seven Tool Ltd.
CSR	Corporate Social Responsibility.
Gap Analysis	An assessment of the gaps of an organisation in regard to the provisions set out by ISO 26000.
GDPR	Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)
GRI	Global Reporting Initiative.
ISO 26000	The international standard on social responsibility, issued by the International Organisation for Standardisation. Provides guidance to businesses to operate in a socially responsible way.
Materiality Assessment	An identification of the issues covered by ISO 26000 that are material to the organisation and its key stakeholders. Includes the production of a materiality matrix.
Organisation	Any organisation that has registered onto and accepted the Terms and Conditions of the Toolkit.
Organisation Data	The data provided by and entered into the Toolkit by the Organisation's authorized User(s).
Personal data	Any personal data captured by the toolkit, within the meaning of the GDPR, thus (combination or stand-alone) information that directly or indirectly relates to any identified or identifiable natural person.

Term	Explanation
Public data	The Personal Data that the organisation / user has exported for publication purposes from the Toolkit.
Review & Audit	Checklists to help organisations ensure they have completed the process of assessment on CSR using the Toolkit, and to ensure compatibility with other standards on CSR and sustainability.
SDGs	Sustainable Development Goals.
Services	The services that the Toolkit offers in regard to CSR, based on ISO 26000. This includes but is not limited to the Gap Analysis, Materiality Assessment, Actions and Key Performance Indicators (KPIs) and Review & Audit.
Toolkit	The Seven Toolkit, as developed and provided TST The Seven Tool Ltd
UNGC	United Nations Global Compact.
Use	To register, access and use the Toolkit, its data, results and exports in any way.
User	Any person who is authorized by the Organisation to access the Toolkit.
User License Agreement	This agreement and its terms and conditions regarding the use of the Toolkit, which need to be accepted by all Organisations and Users.

General Information on the Tool

The Seven Toolkit (henceforth the Toolkit), is owned and operated by TST The Seven Tool Ltd and can be used by any organisation to assess itself on CSR, based on ISO 26000. This unique piece of software supports the analysis, implementation and management of CSR based on the ISO 26000 standard and its seven core subjects (i.e. organisational governance, human rights, labour practices, the environment, fair operating practices, consumer issues and community involvement and development). It aims to provide a comprehensive analysis of the status of CSR activities within each organisation via a Gap Analysis, Materiality Assessment and the setting of Actions & KPIs, thereby supporting the development of a professional CSR strategy and facilitating engagement of an organisation's stakeholders. Users can download and export their data, graphs and figures in .csv format, which can then be used in their publications.

The importance of CSR is reflected in the EU's strategy on CSR (2011-2014) and the EU Directive 2014/95/EU on the disclosure of non-financial and diversity information by certain large undertakings and groups. Furthermore, by evaluating how socially responsible an organisation is using this toolkit, it can comply with other international standards and conventions on sustainability, such as the Global Reporting Initiative's (GRI) G4 guidelines on sustainability reporting, the German Sustainability

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Codex, the United Nations Global Compact (UNGC), the OECD guidelines for multinational enterprises, the United Nations Guiding Principles on Business and Human Rights and more.

Grant of License

The Administrators grant the User a non-exclusive, non-sublicensable, non-transferable license to use the Toolkit within the limits of this User License Agreement. This license is expressly limited to the use by the Organization and its designated two Users, who can be appointed and substituted by the Organisation.

3.1 Restrictions

The Organisation and User is not permitted to:

- i. Commercially exploit the Toolkit, other than making use of the reports generated by it for its own purposes, commercial and non-commercial;
- ii. Copy (archival or otherwise), distribute, lease, license, sell, rent, lend, convey, or otherwise transfer or assign the Toolkit, any copies thereof, or any passwords or usernames of the Toolkit, without the express prior written consent of the Administrators or as set forth in this User License Agreement;
- iii. Make the Toolkit publically available or available on a network for use or download by multiple users;
- iv. Reverse-engineering, decompile, disassemble, translate, prepare derivative works based on or otherwise modify the Toolkit in whole or in part;
- v. Remove, obscure or modify any copyright, trademark or other proprietary rights notices, marks or labels contained on or within the Toolkit, falsify or delete any author attributions, legal notices or other labels of the origin or source of the material; or
- vi. Misrepresent the source of ownership of the Tool.
- vii. Use the Toolkit in any matter other than described above.
- viii. Use the Toolkit for the benefit of any other legal entity other than the Organisation with which the Administrators have signed a User License Agreement.
- ix. Use the Toolkit to submit or link to any content which is defamatory, abusive, hateful, threatening, libelous, spam or spam-like, likely to offend, contains adult, nudity or objectionable content, contains personal information of others, or is racially, sexually, religiously, or otherwise objectionable or offensive, risks copyright infringement, encourages unlawful activity or otherwise violates any laws.
- x. Use the Toolkit to harm anyone or to cause offence to or harass any person or disrupt the Toolkit in any way that may negatively affect others' ability to fully enjoy the Toolkit.
- xi. Not use the Toolkit in any unlawful manner, for any unlawful purpose, or in any manner inconsistent with these terms, or act fraudulently or maliciously, for example, by hacking into or inserting malicious code, such as viruses, or harmful data, into the Toolkit or any operating system;

The Administrators have the right at any time, and without prior notice, to revoke the license and restrict access to the Toolkit, if the Organisation and/or the User is in default of any of the terms and conditions of this User License Agreement.

The license does explicitly not include a right of maintenance service for the benefit of a specific Organisation. However, should you encounter any problems with the Toolkit, then feel free to please contact info@seven-toolkit.com

From time to time we may automatically update the Toolkit to improve performance, enhance functionality, reflect changes to the operating system or address security issues. Alternatively, we may ask you to take any actions to update the Toolkit for these reasons.

If you choose not to install such updates or if you opt out of automatic updates you may not be able to continue using the Toolkit.

Any improvements, modifications, updates, extensions and enhancements that the Administrators make to the Toolkit are automatically covered by this license. These updates will be communicated to the Organisation and the User by the Administrators either through the website, direct email or other relevant communication means.

Terms of Use

The Toolkit is designed to be a management tool aiming to assist Organisations in regard to CSR. The process that will go along with data entry on the Toolkit, such as data gathering and compilation, stakeholder engagement, interviews, desk-based research, questionnaires, etc., will be solely the responsibility of the Organisation.

The Toolkit is currently offered as a beta version. The Administrators reserve the right, for any reason and without notice, in its sole discretion, to terminate, change, suspend, or interrupt access in whole or in part, to the Toolkit. The Administrators will however make reasonable efforts of informing Organisations in time before terminating the service of the Toolkit.

As the Toolkit is currently operated as a beta version, Organisations have the right to request a free trial for a pre-determined amount of time. The Administrators explicitly reserve the right to restrict the use of the Toolkit and demand a fee for the use of the Toolkit or certain features thereof in the future.

While the Administrators strive to ensure that the information included on the Toolkit is accurate and reliable, errors may sometimes occur in the transmission of the information. The Administrators do not guarantee that the content included on the Toolkit is free from all technical inaccuracies, functional issues or typographical errors. The Organisation and its Users acknowledge the beta-status of the Toolkit and accept the potential inaccuracies set out above.

The Administrators reserve the right, in their sole discretion, to modify, alter, or otherwise revise the terms and conditions of this User License Agreement, at any time. The Organization and Users are

required to accept this User License Agreement, including its current terms and conditions and any updated terms and conditions that will be released in the future, before they can make use of the Toolkit. The User License Agreements including its current terms and conditions should be reviewed regularly.

The User shall during the continuance of this User License Agreement effect and maintain adequate security measures to safeguard Toolkit from access or use by any unauthorized person and retain the Toolkit and all copies thereof under the Licensee's effective control.

If you do not accept the notified changes you may continue to use the Toolkit in accordance with the existing terms but certain new features may not be available to you.

Tool Access

The registered Organisation can access the Toolkit through self-nominated Users. The contacts will be classified as User. Users will have all rights and will be able to undertake a Gap Analysis, a Materiality Assessment, add Actions and KPIs and undertake an Audit and Review using the Toolkit.

The access to the Toolkit will only be provided to the Users after they provide their work email and create their own password. The Organisation has the right to request the change of a User's username and password by providing a written request to the Administrators. There is no time restriction on the use of the Toolkit per project.

Before the Users can export the reported data, they will be asked to digitally confirm that they are legally allowed to represent the reporting organisation. By agreeing to the terms and conditions set out in this User License Agreement, each User represents and warrants that he/she has obtained all necessary internal approvals and that he/she is authorized to represent the Organisation on the Toolkit.

The Administrators cannot be held responsible nor liable for any damages caused by persons who were not authorized to represent an Organisation or any other legal entity using the Toolkit. If any organisation becomes aware of any unauthorized representation of their organisation on the Toolkit, this organisation can contact the administrators at info@seven-toolkit.com

The Administrators reserve the right to revoke the access and usage rights of any User in case of abuse of log-in details, misrepresentation or acts by the User (or the person using the account of the User) in violation of this User License Agreement.

Data Access and Data Ownership

The access to the Toolkit will be restricted to Users of each Organisation. Currently, the only access to the Toolkit is through the web-portal. The Organisation has the option to export its own data, and any related tables, graphs and figures, in a machine-readable file.

The responsibility of validation of the data entered onto the Toolkit for the Organisation, lies with the Organisation and its authorised Users. The Administrators cannot be held responsible for any errors or mistakes in the final data, and any related tables, graphs and figures exported from the Toolkit and subsequently shared and/or published by the Organisation. If the Organisation however becomes aware of any incorrect Public Data on their organisation, it can notify the administrators at info@seven-toolkit.com. The Organisation is and remains the sole owner of its own reported data.

Data entered into the Tool is stored on the administrators' data platform. No third party will be able to access the Organisation Data stored on the data platform. Both Organisation Data and Public Data may be used by the administrators for statistical, trend analysing and program optimisation purposes. By accepting this terms and conditions of this User License Agreement, Organisations and Users agree that the Organisation's data and Public data entered on the Toolkit will be stored on the administrators' data platform and will be reviewed where necessary. Furthermore, the administrators may collect and use certain data, including Organisation Data and Public Data, and share this data with third parties on a free or commercial basis, provided that such data disclosed to third parties shall contain no reference to and may not contain Personal Data.

Intellectual Property and Copyright

All intellectual property rights, including copyrights, patents and trademark rights used by the Toolkit and data added to the Toolkit by the Administrators, including the linked content, is solely owned by or licensed to the Administrators. Such content cannot to be used, reproduced or copied without the express written consent of the Administrators.

Data added by the Organisation or its Users to the Toolkit remains the property of the Organisation. All intellectual property rights relating thereto shall be observed by the Administrators at all times, however the Organisation and its Users agree and approve the use of their intellectual property rights to the extent that the data is collected and used by the Administrators on an aggregated basis. Any data and any intellectual property rights relating thereto that is part of the report that is published to and made visible on the public area of the Toolkit, and thus qualifies as Public Data, shall however be public.

Except as expressly provided, each party (hereinafter the '**Receiving Party**') undertakes to treat as confidential and keep secret all information of the other party (hereinafter the '**Disclosing Party**') marked 'confidential' or which may reasonably be supposed to be confidential that is disclosed by the Disclosing Party to the Receiving Party during the negotiations or the performance of this User License Agreement (hereinafter the '**Information**'). If the Disclosing Party is the Administrator the Information includes, without limitation, information contained or embodied in the Toolkit. The Receiving Party shall protect the Information with the same degree of care as it employs with regard

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to its own confidential information of a like nature and in any event in accordance with best current commercial security practices, provided that, this clause shall not extend to any Information which was rightfully in the possession of the Receiving Party prior to the commencement of the negotiations leading to this User License Agreement or which is already public knowledge or becomes so at a future date (otherwise than as a result of a breach of this clause).

The Receiving Party shall not without the prior written consent of the Disclosing Party disclose any part of the Information to any person except:

- (i) to its own employees who need to know the same;
- (ii) to its auditors, a court of competent jurisdiction, a governmental body or applicable regulatory authority and any other persons or bodies having a right duty or obligation to know the business of the Receiving Party and then only in pursuance of such right duty or obligation.

Any persons and/or bodies referred to above shall be made aware before the disclosure of any part of the Information that the same is confidential and that they owe a duty of confidence to the Disclosing Party.

The Receiving Party shall promptly notify the Disclosing Party if it becomes aware of any breach of confidence by any person to whom it discloses all or any part of the Information and shall give the Disclosing Party all reasonable assistance in connection with any proceedings which the Disclosing Party may institute against such person for breach of confidence.

This clause shall remain in full force and effect notwithstanding any termination of this User Licence Agreement.

Data Privacy

Under data protection legislation, we are required to provide you with certain information about who we are, how we process your personal data and for what purposes and your rights in relation to your personal data and how to exercise them. This information is provided herein below and it is important that you read the below information. The Administrators will only process Personal Data insofar as this is necessary for the operation and secure utilisation of the Tool.

By accepting the terms and conditions of this User License Agreement, the Organization and User(s) agree that the Administrators (as controllers) and their external service providers (as processors), may collect, use and process the following Personal Data:

- i. Username;
- ii. First name and family name;
- iii. Working email address;
- iv. Phone number;
- v. Job Position;

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vi. Organisation on behalf of which the User(s) are reporting.

The above Personal Data is collected for the following purposes:

- To identify the User(s) for the purpose of granting the User(s) exclusive access to the Tool;
- To identify the User(s) for the purpose of validating that the User(s) may represent the Organisation who's reported data may be published on the public area of the Tool;
- To contact the User(s) for updates, marketing and Organisation support purposes;
- To contact the User(s) related to any changes in the Toolkit or the terms and conditions,

The Administrators may contact the User(s) by phone, text, email, letter or other means of communication, but only for the above-mentioned purposes.

The Administrators shall process the aforementioned personal data in compliance with the provisions of GDPR and the applicable local legislation as amended from time to time on the following legal basis:

- (i) For compliance with a legal obligation
- (ii) For the performance of contractual obligations
- (iii) For the purposes of safeguarding legitimate interests
- (iv) On the basis of your consent

Insofar as you have granted us consent to the processing of personal data for marketing purposes, the lawfulness of such processing is based on your consent. Any such consent granted, may be revoked at any time by contacting us.

Please note that we will only use your personal data for the purposes for which we collected it, unless we reasonably consider that we need to use it for another reason and that reason is compatible with the original purpose. If you wish to get an explanation as to how the processing for the new purpose is compatible with the original purpose, please Contact us.

If we need to use your personal data for an unrelated purpose, we will notify you and we will explain the legal basis which allows us to do so.

The Administrators respect and protect the Personal Data of the User(s) in accordance with the General Data Protection Regulation ([link](#)). The aforementioned Personal Data is stored for as long as necessary to fulfil the stated purposes or until the User(s) contacts the Administrators according to the procedure described below. We will not keep any Personal Data following the conclusion of our business relationship or until you cease using the Toolkit (as the case may be). In case we do retain any data these will be anonymized and will not constitute Personal Data in any way.

Personal Data that is included in a published report that is generated by the Toolkit, may be publicly disclosed. All other Personal Data will not be disclosed to third parties.

We hereby affirm that we will take all reasonable steps and/or actions to confirm that we require any employees and/or representatives of all third parties with which we co-operate to execute their duties in accordance with the highest industry standards and comply with all provisions and requirements of the provisions of Data Privacy section and the local laws and regulations on the protection of personal data (as amended from time to time), the GDPR and any legislation to succeed it or complement it.

Each User has the right to contact the Administrators to deny the Administrators to process his or her personal data. Furthermore, the User(s) can at reasonable request the Administrators to:

- inform the User whether or not his or her Personal Data is being processed;
- correct, supplement or remove Personal Data, if the data is factually incorrect, incomplete or irrelevant;
- provide a summary of the Personal Data in a machine-readable or paper format, including a description of the purposes of the processing, the categories of the Personal Data concerned, the recipients and the source of the Personal Data;
- Request access to your personal information.
- Request erasure of your personal information.
- Object to processing of your personal information where we are relying on a legitimate interest (or those of a third party) and there is something about your particular situation which makes you want to object to processing on this ground.
- Request the restriction of processing of your personal information.
- Request the transfer of your personal information to another party.

For any questions regarding the data processing, a User can send their request at the following email address: info@seven-toolkit.com

Disclaimer, Waiver, Indemnity

THE TOOLKIT IS PROVIDED BY THE COPYRIGHT HOLDERS AND CONTRIBUTORS “AS IS” AND ANY EXPRESS OR IMPLIED WARRANTIES, INCLUDING BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE ARE DISCLAIMED. IN NO EVENT SHALL THE COPYRIGHT OWNER OR CONTRIBUTORS BE LIABLE FOR ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY OR CONSEQUENTIAL DAMAGES (INCLUDING BUT NOT LIMITED TO, PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES; LOSS OF USE, DATA, OR PROFITS; OR BUSINESS INTERRUPTION) HOWEVER, CAUSED AND ON ANY THEORY OF LIABILITY, WHETHER IN CONTRACT, STRICT LIABILITY, OR TORT (INCLUDING NEGLIGENCE OR OTHERWISE) ARISING IN ANY WAY OUT OF THIS SOFTWARE, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGE.

In particular, in no event shall the Administrators or their respective personnel be liable or responsible for any loss, damage (whether actual, indirect, special, incidental, consequential, punitive, or

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otherwise), injury, claim, liability, or other cause of action of any kind or character whatsoever caused by, based upon, or arising out of any use of or inability to use either the Toolkit, including linked content or the information contained in the Toolkit, such as viruses, omissions, or misstatements. The Organisation and its Users each waive any claim they may have against the Administrators or related parties to this effect. The Organisation and its Users agree to indemnify, defend and hold the Administrators, its partners, affiliates, contractors, officers, directors, employees and agents harmless from and against any and all damages, losses and expenses arising directly or indirectly from: (i) the Organisation's and Users' acts and omissions to act in using the Toolkit pursuant to the terms and conditions of this User License Agreement; or (ii) the Organisation's and Users' breach of this User License Agreement.

Governing law; Jurisdiction

This User License Agreement and its terms and conditions are subject to the laws of The Republic of Cyprus. Specifically excluded from application to this User License Agreement is that law known as the United Nations Convention on the International Sale of Goods.

Any disputes arising from or in connection with the usage of the Toolkit shall in first instance be attempted to be resolved through consultation and good faith negotiations.

If no understanding or resolution is reached, the parties shall irrevocably submit to the exclusive jurisdiction of the courts of The Republic of Cyprus and such dispute will be finally settled by the competent court in Nicosia, Cyprus.

General Terms

Severance

If any provision of this User License Agreement is or becomes prohibited by law or is judged by a court to be unlawful, void or unenforceable, the provision shall, to the extent required, be severed from this User License Agreement and rendered ineffective as far as possible without modifying the remaining provisions of this User License Agreement, and shall not in any way affect any other circumstances of or the validity or enforcement of the remainder of this User License Agreement.

Successors and assignees

This User License Agreement shall be binding upon, and inure to the benefit of, the parties and their respective successors and permitted assignees, and references to a party in this User License Agreement shall include its successors and permitted assignees.

In this User License Agreement references to a party include references to a person:

- (i) who for the time being is entitled (by assignment, novation or otherwise) to that party's rights under this User License Agreement (or any interest in those rights);
- (ii) who, as administrator, liquidator or otherwise, is entitled to exercise those rights,

and in particular those references include a person to whom those rights (or any interest in those rights) are transferred or pass as a result of a merger, division, reconstruction or other reorganization involving that party. For this purpose, references to a party's rights under this User License Agreement include any similar rights to which another person becomes entitled as a result of a novation of this User License Agreement.

Waiver

Unless a party expressly waives its rights in writing, no delay, neglect or forbearance by either party in enforcing against the other party any term or condition of this User License Agreement shall either be or be deemed to be a waiver or in any way prejudice any right of that party under this User License Agreement. No right, power or remedy in this User License Agreement conferred upon or reserved for either party is exclusive of any other right, power or remedy available to that party.

Time of the essence

Time shall be of the essence in this User License Agreement as regards any time, date or period mentioned in this User License Agreement or subsequently substituted as a time, date or period by agreement in writing between the parties.

Language

This User License Agreement is made only in the English language. If there is any conflict in the meaning between the English language version of this User License Agreement and any version or translation of it in any other language, the English language version shall prevail.